

24VECV03859 24VECV03859

County: los-angeles

Division: Civil Law and Motion

Department: 107

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Case Number: 24VECV03859 Hearing Date: August 31, 2026 Dept: 107

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

COUNTY OF LOS ANGELES

NORTHWEST DISTRICT

Maboud

Nourkhah,

Plaintiff,

v.

Habib

Talebi, et al.

Defendants.

Case Number Department

24VECV03859 107

COURT'S [TENTATIVE]

ORDER RE:

Motion to Dismiss

[THE FOLLOWING IS A TENTATIVE RULING IN THE ABOVE CASE]:

Grant

I.

BACKGROUND

In

2022, Plaintiff Maboud Nourkhah ("Plaintiff") and Defendants Habib Talebi and Mery Tabrizi ("Defendants") formed a partnership to purchase and operate a restaurant business. (Third Amended Complaint ["TAC"] ¶ 5.) Plaintiff and Defendants entered a lease agreement to run a restaurant located at 20855 Ventura Blvd, Unit B, Woodland Hills, CA 91364 (the "Restaurant"). (TAC ¶¶ 5-6.) The Restaurant opened for business in or about July 2022. (TAC ¶ 7.) From June 2022 to March 2024, Plaintiff received no compensation, profit distributions, or reimbursement. (TAC ¶ 8.) "Plaintiff discovered that Defendants, with the aid of outside counsel, were unlawfully withholding revenue and concealing cash income in violation of tax reporting laws." (TAC ¶ 9.) Plaintiff confronted Defendants and Defendants "forcibly excluded him from the Business, sent a cease-and-desist letter, refused to compensate him, and wrongfully retained his personal property, decorations, and equipment." (TAC ¶ 10.)

On

August 15, 2024, Plaintiff filed a complaint against Defendants, alleging causes of action for breach of contract and "accuses of faluse & defamation in society." (Complaint p. 2.)

On

October 4, 2024, Defendants filed a demurrer. On November 15, 2024, the court sustained the demurrer and granted Plaintiff leave to amend. (11/15/24 Minute Order pp. 4-5.)

On

December 27, 2024, Plaintiff filed a first amended complaint against Defendants, alleging the same causes of action as the original complaint. (First Amended Complaint p. 2.)

On

March 10, 2025, Plaintiff filed a second amended complaint against Defendants,

alleging nine causes of action.

On

April 23, 2025, the court struck Plaintiff's second amended complaint and granted Plaintiff 10 days leave to file an amended complaint. (04/23/25 Minute Order p. 7.)

On

July 10, 2025, Plaintiff filed a third amended complaint against Defendants, alleging causes of action for: (1) unjust enrichment; (2) breach of contract; (3) accounting; (4) conversion; (5) fraudulent misrepresentation; (6) constructive fraud; (7) breach of implied-in-fact contract; and (8) declaratory relief.

On

December 8, 2025, the court denied Defendants' requests to dismiss the action and for monetary sanctions but granted the request to strike the third amended complaint. (12/08/25 Minute Order pp. 6-7.)

On

February 27, 2026, the court granted Defendants' request to strike the first amended complaint, denied the request to strike the original complaint as unnecessary, and denied Defendants' request to dismiss the action. (02/27/26 Minute Order p. 8.)

On

July 1, 2026, Defendants filed a motion to dismiss action with prejudice pursuant to Code of Civil Procedure section 581(f)(4) (the "Motion"). On July 8, 2026, Plaintiff filed an opposition. On August 24, 2026, Defendants filed a reply.

II.

LEGAL

STANDARD

"The

court may dismiss the complaint as to that defendant when . . . (2) Except where Section 597 applies, after a demurrer to the complaint is sustained with leave to amend, the plaintiff fails to amend it within the time allowed by the court and either party moves for dismissal." (Code Civ. Proc., § 581, subd.

(f)(2).) Dismissal under section 581, subdivision (f)(2) is discretionary. (Haidet v. Del Mar Woods Homeowners Assn. (2024) 106 Cal.App.5th 530, 535-536.) “[I]f a court exercises discretion to dismiss, it must do so with prejudice.” (Id. at p. 536.)

The court may also dismiss a complaint as to that defendant when, “[a]fter a motion to strike the whole of a complaint or portion thereof is granted with leave to amend the plaintiff fails to amend it within the time allowed by the court and either party moves for dismissal.” (Code Civ. Proc., § 581, subd. (f)(4).)

III.

DISCUSSION

Defendants

move for an order dismissing the action with prejudice as to Defendants.

(Motion p. 1.) Defendants argue

dismissal is warranted because the court repeatedly granted motions to strike Plaintiff’s pleadings with leave to amend but Plaintiff failed to timely amend the pleadings, there is no operative pleading on file, Plaintiff forfeited any right to further amendment, Plaintiff failed to diligently prosecute the action for nearly two years, and dismissal is supported by the court’s inherent authority and public policy. (Motion pp. 1-2.)

In

opposition, Plaintiff argues Defendants have not demonstrated dismissal is warranted and Plaintiff continues to prosecute the action. (Opposition pp. 2-3.) Plaintiff further argues that Defendants’ Motion presents an incomplete record and the ongoing property dispute shows Plaintiff has not abandoned the action. (Opposition p. 3.) Finally, Plaintiff argues Defendants have not demonstrated prejudice and the interests of justice favor resolving the case on the merits. (Opposition p. 3.)

In

reply, Defendants opposition does not address Code of Civil Procedure section 581, subdivision (f)(4) and the procedural history of this matter shows Plaintiff repeatedly failed to amend within the time permitted by the court. (Reply p. 2.)

The

court sustained the demurrer to the original complaint and granted Plaintiff leave to amend. (11/15/24 Minute Order pp. 4-5.) On January 31, 2025, the court set a hearing for Order to Show Cause Re: Plaintiff's Failure to Serve Amended Complaint and File Proof of Service for April 4, 2025. (01/31/25 Minute Order.) Plaintiff filed a second amended complaint, which the court struck and granted Plaintiff ten days leave to file an amended complaint. (04/23/25 Minute Order p. 7.) On February 27, 2026, the court struck the first amended complaint. (02/27/26 Minute Order pp. 7-8.) The court also struck the third amended complaint because Plaintiff failed to file it within the time permitted by the court. (12/08/25 Minute Order pp. 6-7.) The court denied Plaintiff's request for leave to file a fourth amended complaint. (05/29/26 Minute Order p. 5.)

Code

of Civil Procedure section 581, subdivision (f)(4) states "[t]he court may dismiss the complaint as to that defendant when: [¶] . . . [¶] After a motion to strike the whole of a complaint or portion thereof is granted with leave to amend the plaintiff fails to amend it within the time allowed by the court and either party moves for dismissal."

The

court struck the second amended complaint on its own motion and granted Plaintiff leave to amend within ten days. (04/23/25 Minute Order p. 7.) The court also granted Defendants' motion to strike the third amended complaint because Plaintiff did not timely file it. (12/08/25 Minute Order pp. 6-7.)

Plaintiff

failed to timely amend the complaint within the time granted by the court. (12/08/25 Minute Order pp. 6-7.) Thus, the court dismisses Defendants with prejudice.

IV.

CONCLUSION

For

the foregoing reasons, the Motion is granted.

Dated: August 31, 2026 _____ Hon. Eric Harmon

Judge of the Superior Court